

CHAPTER 34.

An Act to prevent the spread of Bee Pest or Foul Brood in Ireland.
[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Notification of
bee pest or foul
brood.

1.—(1) If any person keeping or having charge of bees becomes aware that the bees, or any of them, are affected with the disease known as bee pest or foul brood, he shall forthwith give notice of that fact to the local authority of the district in which the bees are kept.

(2) If any person required to give notice under this section fails to give the notice forthwith, he shall be guilty of an offence under this Act, and shall be liable, on summary conviction, to a penalty not exceeding five pounds.

Inspection of
bees.

2.—(1) Any officer of the Department of Agriculture and Technical Instruction for Ireland (in this Act referred to as "the Department") charged with agricultural duties and authorised in writing in that behalf by the Department, and, within the district of any local authority, any person authorised in writing in that behalf by the local authority, shall have power to enter at all reasonable times any premises where bees are kept, and to inspect any bees and articles and appliances used in connection with bee-keeping.

(2) If any person refuses to allow any such officer or authorised person to enter any premises which he is entitled to enter under this section, or obstructs or impedes him in the execution of his duty, he shall be guilty of an offence under this Act, and shall be liable, on summary conviction, to a penalty not exceeding ten pounds.

Destruction of
bees and arti-
cles infected or
supposed to be
infected.

3.—(1) The Department, and, within the district of any local authority, the local authority, may, if they think fit, cause to be destroyed any bees and articles and appliances used in connection with bee-keeping which are infected with bee pest or foul brood, or suspected of being so infected.

(2) For the purposes of this section, the Department or the local authority may, if they think fit, serve a notice in writing upon the person keeping or having charge of any such bees, articles, or appliances, requiring him to destroy the same within the period specified in the notice ; and, if any such person upon whom a notice is served fails to destroy the bees, articles, and appliances mentioned in the notice within the period therein specified, he shall be guilty of an offence under this Act and shall be liable, on summary conviction, to a penalty not exceeding ten pounds.

Infected areas.

4. The Department may at any time, if they think fit, upon any evidence satisfactory to them, by order, declare any area to

be an area infected with bee pest or foul brood, and may cause to be destroyed any bees and articles and appliances used in connection with bee-keeping within that area; and the provisions of the last preceding section relative to notices, including penal provisions, shall apply in the case of every person keeping or having charge of any bees or articles or appliances used in connection with bee-keeping within that area.

5. Any person who knowingly removes from his premises, or sells or disposes of to any other person, or imports into any district, any bees infected with bee pest or foul brood, or any article or appliance used in connection with bee-keeping and infected with that disease, shall be guilty of an offence under this Act, and shall be liable on summary conviction to a penalty not exceeding, for the first offence, five pounds, and for the second or any subsequent offence, ten pounds. Penalties.

6.—(1) Subject to the provisions of this section, compensation may be paid to the owner of any bees, articles, or appliances destroyed under this Act, if the Department, with the consent of the local authority of the district within which the bees, articles or appliances were kept, so directs, and the compensation shall be payable by such local authority accordingly. Compensation.

(2) The amount of the compensation shall be determined in accordance with a scale to be prescribed by the Department, and shall in no case exceed one half of the value of the bees, articles and appliances immediately before their destruction.

(3) The consent of the local authority shall be signified by a resolution of the authority consenting generally to the payment of compensation, in accordance with the provisions of this section, in every case to which the section applies.

7.—(1) The Department may, by order, prohibit the keeping of bees for such period as they think fit upon any premises upon which any bees, articles, or appliances have been destroyed under this Act. Prohibition of
bee-keeping on
infected pre-
mises.

(2) Any person keeping bees contrary to an order made by the Department under this section shall be guilty of an offence under this Act, and shall be liable, on summary conviction, to a penalty not exceeding ten pounds.

8. The Department may make regulations—

Regulations.

(a) With respect to the manner in which notices are to be given under this Act;

(b) With respect to the method of cleaning, disinfection or the destruction of bees, articles, and appliances under this Act, and the making and determination of claims for compensation; and

(c) Generally for the purpose of carrying this Act into effect.

Section one of the Rules Publication Act, 1893, shall not apply to any regulations made in pursuance of this section. 56 & 57 Vict.
c. 66.

Appointment
of officers by
local authori-
ties.

9. A local authority may, with the consent of the Department, appoint one or more officers for the purpose of the execution of this Act having such qualifications and upon such terms as to remuneration and otherwise as the Department approve.

Local authori-
ties and ex-
penses.

10.—(1) The local authority for the purposes of this Act shall—

(a) as respects the rural districts of any administrative county, be the county council;

(b) as respects an urban district or county borough, be the council of the district or borough.

(2) The expenses incurred by or on behalf of a local authority in the execution of this Act, including compensation, shall be defrayed in the case of the council of a county other than a county borough out of the funds at the disposal of the council for the purposes of agriculture and other rural industries, and, in the case of the council of an urban district or county borough, out of any rate or fund applicable to the purposes of the Public Health (Ireland) Acts, 1878 to 1907, as if incurred for those purposes.

Exercise of
powers of county
councils by com-
mittees for the
purposes of Part I.
of 62 & 63 Vict.
c. 50.

11. The powers and duties of the council of every county other than a county borough under this Act shall be exercised and discharged by and through the committee appointed by the council for the purposes of Part I. of the Agriculture and Technical Instruction (Ireland) Act, 1899.

Prosecution of
offences.

12.—(1) Any offence under this Act may be prosecuted, and any penalty recoverable under this Act may be recovered in a summary manner.

(2) A prosecution for an offence under this Act may be instituted, and a penalty recoverable under this Act may be recovered, either by the Department or the local authority.

(3) All penalties recovered under this Act shall, notwithstanding any provision in any other Act, be paid to the body by whom the prosecution is instituted under this section, and shall be applied in aid of the expenses of that body in the execution of this Act.

Extent, cita-
tion, and com-
mencement.

13. This Act shall apply to Ireland only, and may be cited as the Bee Pest Prevention (Ireland) Act, 1908, and shall come into operation on the first day of January one thousand nine hundred and nine.

CHAPTER 35.

An Act to confer upon County Councils in Ireland the power to alter the Polling Districts and alter the method of compiling Lists of Voters.

[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :